

Amendment Procedure & Basic Structure

Article 368 pathways and Kesavananda basic structure doctrine.

Portion focus ~80% · Topic: polity-const

PYQ themes: Art 368 · Basic structure · Judicial review · Federal ratification · Kesavananda

Why this portion (PYQ lens)

Portion chance ~80%. Regular conceptual hits; parent polity-const ~85%.

Years appeared (synthesis): 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025

Why UPSC asks this

Tests limits on constitutional change - conceptual depth.

Syllabus framing

Portion chance ~80%. Regular conceptual hits; parent polity-const ~85%. This portion sits inside polity-const and centres on constitutional amendment and basic structure. Tests limits on constitutional change - conceptual depth.

Recurring PYQ angles: Art 368, Basic structure, Judicial review, Federal ratification, Kesavananda. Approximate appearance years in the 2016-2025 educational synthesis: 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025. Use the chance percentage only to sequence study hours - it is not an official prediction.

Core map of constitutional amendment and basic structure

Art 368: Power and procedure to amend. Special majority: Typical parliamentary pathway.

State ratification: Some federal provisions need States. Not ordinary law: Distinct from simple legislation.

Hold this core map as your elimination spine before memorising peripheral CA overlays.

Core concepts and definitions

Kesavananda 1973: Cannot destroy basic structure via 368. Illustrative features: Supremacy, judicial review, federalism, secularism, free elections.

Open list: Essentials identified case-by-case. Golaknath backdrop: Earlier amendment - rights tension.

Institutions, processes and mechanisms

Election case: Basic structure in political process context. Minerva Mills: Limited amending power; FR - DPSP harmony.

42nd Amendment: Emergency-era expansive politics. 44th Amendment: Corrective politics headline.

India angle and applied examples

Judicial review link: Often treated as essential. Procedure vs substance: Correct procedure cannot smash essentials.

Federalism shield: Ratification + basic structure narrative. Secularism/democracy: Frequently cited essentials.

Comparisons, linkages and discriminators

Not entire Part III frozen identically: Targets constitutional identity essentials. Constituent power debates: Prelims wants outcome clarity.

India angle

Doctrine is India's identity shield versus absolute parliamentary sovereignty caricatures.

Question patterns and exam spine

Matching lists and multi-statement questions on constitutional amendment and basic structure.

Revision spine: Definitions -> table -> India -> traps for constitutional amendment and basic structure.

Eliminate anachronisms and category errors first, then test remaining options against table rows and must-remember triggers.

Trap watch-list (specific)

Avoid: Unlimited amending power. Avoid: Basic structure as printed schedule. Avoid: Mixing ratification with Money Bill. Avoid: Wrong Kesavananda year.

Amendment & limits

Idea | Hook

Art 368 -- Power/procedure

Special majority -- Parliamentary path

State ratification -- Federal features

Basic structure -- Substantive limit

Common traps

- x Unlimited amending power
- x Basic structure as printed schedule
- x Mixing ratification with Money Bill
- x Wrong Kesavananda year

Must remember

- Kesavananda 1973
- Art 368
- Ratification subset
- Feature examples
- 42nd/44th context

Quick revision checklist

- [] Reproduce table
- [] 5 must-remembers
- [] 3 traps
- [] India anchor
- [] 10 MCQs

Educational prioritisation heuristic - not an official UPSC prediction. (c) UPSC IAS Study Hub original notes.